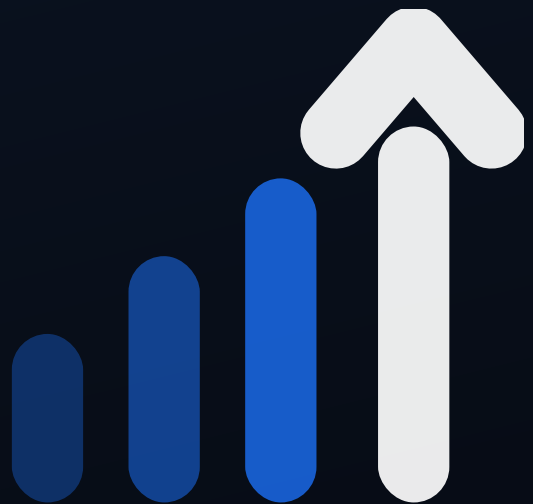




07

Commercial Framework

A term sheet for counsel to draft from — not an executable agreement.



INTERNAL & COUNSEL ONLY

IBROWSEJOBS TECHNOLOGIES PVT LTD · 2026 EDITION

Commercial in confidence. Prepared for evaluation by the named recipient and not for onward distribution.



Read this first

This is a commercial term sheet prepared to structure a negotiation. It is not legal advice and it is not an executable agreement. Every section must be reviewed and redrafted by qualified counsel in the governing jurisdiction before it is put in front of a customer for signature. Headings marked DECIDE record a position the business must take before drafting.

01

TERM SHEET

Thirteen positions to settle.

Each clause states the position we suggest taking, and the decision the business must make before a lawyer can draft it.

Grant of licence

A non-exclusive, non-transferable, revocable right to access and use the platform for the partner's own training business, for the subscription term, limited to the tier purchased.

DECIDE Whether territory is restricted, and whether any exclusivity is ever offered by city or segment.

Ownership of IP

All platform software, and all BrowseJobs course content, remain ours. The partner's brand, learner data and their own uploaded content remain theirs.

DECIDE Whether teaching material is licensed at all, and if so on what separate terms.

Trademark licence

The partner licenses us to apply their marks to the tenant for the term. We license no marks to them beyond an optional 'Powered by' attribution.

DECIDE Is 'Powered by BrowseJobs' required, optional, or a discount in exchange for it?

Fees & increases

Fees per the order form. Annual increase capped at a stated percentage, notified in advance.

DECIDE The cap, and the notice period.

AI usage & overage

Each tier includes a stated monthly AI allowance, metered per tenant. Overage is billed in arrears at a published rate.

DECIDE The allowance per tier and the overage rate. Do not offer unlimited AI on a flat fee.

Data protection

The partner is the data fiduciary for learner data; we act as data processor under a separate DPA aligned to the DPDP Act. Sub-processors listed, with notice on change.

DECIDE Hosting region, retention periods, and the sub-processor change-notice period.

Security & availability

A stated monthly uptime target with severity-based response times, measured excluding notified maintenance windows.

DECIDE The uptime figure, the maintenance window, and whether service credits apply.



Support

Support by tier, through a named channel, during stated business hours.

DECIDE Hours, channels, and whether out-of-hours cover is sold separately.

Acceptable use

No resale or sublicensing of platform access, no misuse of learner data, no attempts to circumvent tenant isolation or usage metering.

DECIDE Whether sub-institutes or franchisees of the partner are permitted, and how they are counted.

Term, renewal & termination

Initial term with auto-renewal unless notice is given. Termination for material breach after a cure period; termination for convenience only at renewal.

DECIDE Initial term length, notice period, and cure period.

Exit & data portability

On termination the partner receives a complete structured export of their tenant data within a stated window; we delete it after a stated retention period, on request.

DECIDE Export format, delivery window, and post-termination retention period.

Liability

Liability capped at fees paid in the preceding twelve months; no indirect or consequential loss. Standard carve-outs.

DECIDE Whether any carve-out is uncapped, and confirm insurance cover matches the cap.

Governing law

Governed by Indian law; courts of Bengaluru, Karnataka.

DECIDE Whether arbitration is preferred, and the seat.



THE CONTRACT SET

What counsel should produce.

DOCUMENT

WHAT IT GOVERNS

Master Subscription Agreement

The umbrella terms — licence, IP, liability, term, governing law.

Order Form

The commercial schedule: tier, fees, allowances, term. The only document with numbers.

Data Processing Agreement

Processor obligations, sub-processors, security measures, breach notification.

Service Level Agreement

Uptime target, severity definitions, response times, credits.

Acceptable Use Policy

What the partner may not do with platform access or learner data.

Exit & Portability Schedule

Export format, delivery window, deletion timetable.

Trademark Licence

Their marks to us for the term; attribution rights back to them.

SEQUENCE THAT SAVES MONEY

Settle every DECIDE above internally first, then brief counsel once. Drafting against unresolved commercial positions is how a straightforward SaaS agreement becomes three rounds of billable redlines.